

DATA PROCESSING AGREEMENT

DPA-2024-SLQ-907 | GDPR Article 28 Compliant

Document Type: Data Processing Agreement	Document ID: DPA-2024-SLQ-907
Effective Date: March 14, 2023	Version: 1.0
Party A: VertexNexus Systems Ltd. (Data Processor)	Party B: PulseApex Technologies Pvt. Ltd. (Data Controller)

1. BACKGROUND

This DPA (DPA-2024-SLQ-907) is entered into pursuant to GDPR Article 28 and governs all personal data processing by VertexNexus Systems Ltd. (Processor) on behalf of PulseApex Technologies Pvt. Ltd. (Controller) under MSA-2022-LWD-636 and associated SOWs.

2. PROCESSOR OBLIGATIONS

- [OBLIGATION]** Process Personal Data only on documented instructions from Controller.
- [OBLIGATION]** Ensure all personnel authorised to process Personal Data are bound by confidentiality obligations.
- Security. [OBLIGATION]** Implement: AES-256 encryption at rest, TLS 1.3 in transit, RBAC, MFA for privileged access, and annual penetration testing.
- Breach Notification. [OBLIGATION — DEADLINE]** Notify Controller within **72 hours** of becoming aware of a personal data breach, including nature, categories affected, and remediation steps.
- Data Subject Rights. [OBLIGATION]** Assist Controller in fulfilling data subject rights requests within 14 business days.

3. DATA RETENTION AND DELETION

- 3.1 **[OBLIGATION — CONFLICT POINT C4]** Upon contract termination, Processor shall retain Personal Data for no more than **18 months** for audit and legal compliance purposes, then securely delete or return all Personal Data.
- 3.2 **[OBLIGATION]** Deletion Certificate to be provided within 32 days of deletion completion.
- 3.3 **[OBLIGATION]** Personal Data purged from all backup systems within 108 days of primary deletion.

4. SUB-PROCESSORS

- 4.1 **[OBLIGATION]** Processor shall not engage new sub-processors without 30 days prior written notice to Controller.

Sub-Processor	Location	Purpose	GDPR Mechanism
Amazon Web Services	Ireland/UK	Cloud Infrastructure	Standard Contractual Clauses
Elastic NV	Netherlands	Search & Logging	Standard Contractual Clauses
Datadog Inc.	EU Region	Monitoring & Observability	Standard Contractual Clauses
Google Cloud Platform	Belgium	ML Infrastructure	Standard Contractual Clauses

5. AUDIT RIGHTS

- 5.1 **[OBLIGATION]** Processor shall allow Controller or designated auditor to conduct audits with 26 days written notice and cooperate fully.

5.2 **[OBLIGATION]** Processor shall provide annual CSA STAR Level 2, PCI DSS Level 1 audit reports and within 8 business days of any significant findings.

SIGNATURE PAGE

FOR VertexNexus Systems Ltd.

Signature: _____

Name: _____

Title: _____

Date: _____

FOR PulseApex Technologies Pvt. Ltd.

Signature: _____

Name: _____

Title: _____

Date: _____